

Whistleblower Protection Code, 2026

Reporting wrongdoing safely, investigation, and protection from reprisal

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Reports go to	The Integrity Commissioner (Document 07, Part 5), not to the person the report concerns.
Reprisal complaints go to	The Appeals Panel (Document 16).
Protected	Amended only by Ratification Vote, except as section 20.2 permits.
Legal review	To be reviewed by legal counsel before adoption.

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WHISTLEBLOWER PROTECTION CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS a report that has to pass through the person it concerns will not be made; and

WHEREAS Members, employees, and contractors who report wrongdoing in good faith shall not lose their jobs, homes, contracts, or benefits for doing so;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation and Application**

1 Citation

- 1.1 This Code may be cited as the *Whistleblower Protection Code of the Fort McMurray No. 468 First Nation, 2026*.

2 Definitions

- 2.1 In this Code:

- (a) "Protected Act" means any of the acts described in section 4.1;
- (b) "Report" means a disclosure of Wrongdoing made under Part 2;
- (c) "Reporter" means a person who makes a Report;
- (d) "Reprisal" means any of the following, done or threatened because a person did a Protected Act: dismissal, suspension, demotion, discipline, reduction of pay or hours, refusal of a job or contract, eviction, loss of Points or position on a list, refusal or reduction of a program or benefit, harassment, or any other measure that adversely affects the person or their Immediate Family; and
- (e) "Wrongdoing" means any of the following, in connection with the First Nation or a First Nation Business Entity:
 - (i) a breach of a Document of the First Nation;
 - (ii) an offence under an Act of Parliament or of the Legislature of Alberta;
 - (iii) misuse of the funds or assets of the First Nation or a First Nation Business Entity;
 - (iv) gross mismanagement;
 - (v) an act or omission that creates a serious danger to the life, health, or safety of persons, or to the environment; or
 - (vi) knowingly directing or counselling a person to commit any of the above.

- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Conduct and Conflict of Interest Code.

3 Who Is Protected

- 3.1 This Code protects every Member, employee, contractor, Official, and member of Council, and any other person who does a Protected Act.

Part 2

Making a Report

4 Protected Acts

- 4.1 Each of the following is a Protected Act when done in good faith:
- (a) making a Report;
 - (b) giving information or evidence to the Integrity Commissioner, the Appeals Panel, the Election Appeal Tribunal, the Electoral Officer, the Finance and Audit Committee, the auditor, a funding agency, the police, or a court;
 - (c) refusing a direction that would require the person to commit Wrongdoing, including a refusal under section 21 of the Spending and Contracts Code; and
 - (d) making a complaint, requesting records, or signing a petition under a Document of the First Nation.

5 Where to Report

- 5.1 A Report may be made to the Integrity Commissioner. A Report about the finances of the First Nation may also be made to the Finance and Audit Committee or the auditor.
- 5.2 A Report about conduct that may be a criminal offence may be made directly to the police, and a Report about the use of funds received under a funding agreement may be made directly to the funding agency.
- 5.3 No person is required to report to a supervisor, the Band Manager, the Chief, or Council before or instead of making a Report under this section. A rule, policy, contract term, or direction that requires such permission, or that forbids a Report, is void.

6 Form of Report

- 6.1 A Report may be made in writing, by email, by telephone, or in person. The Integrity Commissioner shall write down an oral Report within two (2) business days, keep the notes or recording, and give the Reporter a file number.
- 6.2 A Report may be made without the Reporter's name. The Integrity Commissioner shall open a file on a Report that states a date, the provision or kind of Wrongdoing, and a fact that can be checked.

Part 3

Handling of Reports

7 Review and Investigation

- 7.1 Within fifteen (15) days after receiving a Report, the Integrity Commissioner shall open a file, refer it under section 7.3, or close it with a written reason where it states no fact that can be checked or is outside this Code.
- 7.2 The Integrity Commissioner shall tell the Reporter, where the Reporter can be reached, whether the file is open, referred, or closed, within thirty (30) days after receiving the Report.
- 7.3 Where a Report describes conduct that may be a criminal offence, the Integrity Commissioner shall refer that part to the police within five (5) business days. The file continues for the questions of office, pay, repayment, and discipline. This Code does not decide guilt or innocence of any offence.
- 7.4 The Integrity Commissioner shall investigate an open file with the powers in section 24 of the Conduct and Conflict of Interest Code, and shall make a written finding within forty-five (45) days after telling the Reporter that the file is open, unless the matter requires a longer time, in which case the Integrity Commissioner shall tell the Reporter the reason and the expected date.
- 7.5 Where the finding concerns a member of Council or an Official, Parts 6 and 7 of the Conduct and Conflict of Interest Code apply to sanctions. Where it concerns an employee, the finding shall be delivered to the Band Manager, or to Council where it concerns the Band Manager, for action under the Administration and Personnel Code, and the action taken shall be reported to the Integrity Commissioner within thirty (30) days.

8 Confidentiality

- 8.1 The Integrity Commissioner and every person who learns the identity of a Reporter in the course of their duties shall keep it confidential, unless the Reporter consents or disclosure is necessary for a fair investigation or required by law.
- 8.2 Any person who learns the identity of a Reporter and discloses it in breach of section 8.1 is in breach of this Code.

9 Public Log

- 9.1 The Integrity Commissioner shall keep a public log stating, for each file, the file number, the kind of Wrongdoing alleged, the provision alleged to have been breached, the outcome, and the date. The log shall not include the name of any Reporter or any allegation that has not been found to be true.

10 Reports Outside this Code

- 10.1 This Code protects Reports and other Protected Acts. It does not protect a public statement made outside the channels in this Code. A public accusation that a named person committed a crime or acted dishonestly may expose the person making it to a claim for defamation.

11 False Reports

- 11.1 This Code does not protect a person who makes a Report knowing it is false.
- 11.2 Where the Integrity Commissioner finds that a person knowingly made a false Report, the Integrity Commissioner may decline to open another file on a Report from that person for one (1) year, except a Report of Reprisal or of a serious danger to life, health, or safety, and shall record the finding in the log without repeating the false content.

Part 4

Protection from Reprisal

12 Reprisal Prohibited

- 12.1 No member of Council, Official, employee, contractor, or other person acting for the First Nation or a First Nation Business Entity shall take, threaten, or direct a Reprisal.

13 Presumption of Reprisal

- 13.1 A dismissal, suspension, discipline, eviction, refusal of a contract or job, or reduction or refusal of a program or benefit, taken against a person within one hundred and eighty (180) days after the person did a Protected Act known to the decision maker, is presumed to be a Reprisal.
- 13.2 The presumption does not apply where the decision maker files written reasons with the Appeals Panel within ten (10) days after the decision, showing that the same decision would have been made under the same rule for a person who had not done the Protected Act.

14 Reprisal Complaints

- 14.1 A person who believes they have suffered a Reprisal may file a complaint with the Appeals Panel under the Appeals and Complaints Code within one (1) year after the Reprisal.
- 14.2 On the day the Appeals Panel receives a complaint, the decision complained of is suspended until the complaint is decided, as follows:
- (a) a benefit, program payment, or place on a list that was cut or lowered shall be restored within seven (7) days;
 - (b) an eviction or ending of a tenancy shall not be carried out; and
 - (c) an employee who was dismissed or suspended shall be paid their regular pay, and may be placed on paid leave instead of returning to the workplace.
- 14.3 The Appeals Panel shall decide a Reprisal complaint within forty-five (45) days after it is filed.

15 Remedies

- 15.1 Where the Appeals Panel finds a Reprisal, it may order any of the following:
- (a) reinstatement, or restoration of the housing, contract, benefit, Points, or position on a list;
 - (b) payment of lost pay, benefits, or income, and of reasonable expenses caused by the Reprisal;
 - (c) that the person who took the Reprisal take no further part in decisions about the complainant;
 - (d) publication of the finding without the complainant's name, unless the complainant consents; and
 - (e) referral to the Integrity Commissioner, the Band Manager, or Council for action under section 15.2.
- 15.2 A finding of Reprisal against a member of Council or an Official is a breach of the Conduct and Conflict of Interest Code, and a second finding in the same term is a repeated breach for which the Integrity Commissioner shall recommend removal from office or appointment. A finding against an employee is cause for discipline, and a second finding is cause for dismissal, under the Administration and Personnel Code.
- 15.3 The First Nation shall comply with an order of the Appeals Panel within the time it sets, and Council shall not overturn it.

Part 5

Reporting and General

16 Annual Report

- 16.1 The Integrity Commissioner and the Appeals Panel shall each report to the Annual General Assembly the number of Reports and Reprisal complaints received, the kinds of Wrongdoing alleged, the outcomes, and the average time taken, without names.

17 Notice to Employees

- 17.1 The Band Manager shall give every employee a copy of this Code when hired and each year, and shall post it at every workplace of the First Nation.

18 Other Rights

- 18.1 Nothing in this Code limits any right a person has under a collective agreement, an employment contract, the *Canada Labour Code*, the *Canadian Human Rights Act*, or any other law, or the right to apply to a court.

Part 6

Amendment and Coming into Force

19 Protected Document

19.1 This Code is a protected Document. Council may not suspend any provision of it.

20 Amendment

20.1 This Code may be amended only with the approval of the Electors in a Ratification Vote, after the full text of the proposed amendment has been published for at least thirty (30) days.

20.2 Council may amend this Code by Resolution, without a vote of the Electors, only to add protection or a reporting channel, or to shorten a time limit, after thirty (30) days' published notice.

21 Coming into Force and Transition

21.1 This Code comes into force on the date of the Resolution adopting it, and protects Protected Acts done before that date against a Reprisal taken on or after it.

21.2 Until an Integrity Commissioner is appointed, Reports shall be received by a lawyer or retired judge who is not a Member, selected by Council by Resolution, and published as the person to receive Reports.

21.3 Until the Appeals Panel is established, Reprisal complaints shall be heard by a lawyer or retired judge who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution, and who is not the person acting under section 21.2.

21.4 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code gives Members, employees, and contractors a safe way to report wrongdoing without going through the person it concerns, and protects them from reprisal. These notes are not part of the Code.

2. Key provisions

- Reports go to the Integrity Commissioner, the Finance and Audit Committee, the auditor, a funding agency, or the police. No one needs permission from a supervisor, the Chief, or Council first (section 5).
- Reports may be oral or anonymous. A file number is given, and the Reporter is told the status within 30 days (sections 6, 7).
- Criminal matters are referred to the police within five business days. The internal file continues for questions of office, pay, and repayment (section 7.3).
- The identity of a Reporter is kept confidential (section 8).
- The public log shows outcomes, not allegations (section 9).
- An adverse decision within 180 days after a protected act is presumed to be a reprisal unless written reasons are filed within 10 days (section 13).
- A reprisal complaint suspends the decision complained of. Benefits are restored within seven days, evictions are stopped, and dismissed employees are paid while the complaint is decided (section 14).
- A second reprisal finding leads to removal from office or dismissal (section 15.2).

3. Legal sources

Source	Provision
Criminal Code, s. 425.1	Offence for an employer, or a person acting for an employer, to threaten or retaliate against an employee to stop the employee from providing information about an offence to a person whose duties include enforcement of federal or provincial law, or because the employee did so
Members' Bill of Rights (Document 04), s. 5	Freedom from reprisal
Conduct and Conflict of Interest Code (Document 07), ss. 6, 24 to 26	Reprisal by members of Council, investigation powers, and sanctions